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9 Mandarich Law Group, LLP California Debt Collector License Number 10795-99.

10 Attorneys for Plaintiff: LVNV Funding LLC

Electronically FILED by  
Superior Court of California,  
County of Los Angeles  
1/10/2024 12:01 PM  
David W. Slayton,  
Executive Officer/Clerk of Court,  
By E. Flores, Deputy Clerk

11 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**  
12 **IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

13 LVNV Funding LLC,  
14 Plaintiff,

15 vs.

16 M Z Lameer, an individual;

17 and DOES 1 through 10 inclusive.  
18 Defendant.

Case No.

24CHLC00884

COMPLAINT FOR:

1. ACCOUNT STATED

2. OPEN BOOK ACCOUNT

**DEMAND: \$19,719.21**

19 Plaintiff alleges:

20 **FACTS COMMON TO ALL CAUSES OF ACTION**

21 1.Plaintiff is and at all times herein mentioned, LVNV Funding LLC, and successor in  
22 interest to original creditor, Citibank, N.A..

23 2.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California  
24 Debt Collector License Number 10888-04.

25 3.The charge-off creditor at the time of charge-off is Citibank, N.A., 5800 South Corporate  
26 Place Sioux Falls, SD 57108, and the account number associated with this debt is  
27 XXXXXXXXXXXXX6879.

28 4.The subject credit account has been purchased by the following entities after charge-off:  
Resurgent Acquisitions LLC P.O. Box 10466 Greenville, SC 29603. The subject credit account  
was transferred by Resurgent Acquisitions LLC to Plaintiff LVNV Funding LLC, who maintains  
an address at C/O Resurgent Capital Services LP 55 Beattie Place, Suite 110, Greenville SC 29601.

5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper  
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off  
4 creditor's records prior to the sale of the debt is M Z Lameer, 3148 W AVENUE M2 ,  
5 LANCASTER, CA 93536-0000.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,  
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,  
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true  
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,  
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the  
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual  
13 Defendant, and each of them, are jointly and severally liable that the actions described herein  
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and  
16 delivered a credit card application to the original creditor, Citibank, N.A. or made such application  
17 over the telephone or Internet. Pursuant to the aforementioned application, Citibank, N.A. provided  
18 Defendant with a credit account, and granted use privileges on the same, account number  
19 XXXXXXXXXXXX6879 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the  
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay Citibank, N.A. and any successors in interest, for any charges  
23 on the Account including, but not limited to, charges for purchase of goods and service and/or cash  
24 advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to  
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services  
27  
28

1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to  
2 repay Citibank, N.A. and its successors in interest for the amount of the purchase and/or cash  
3 advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and  
5 charges due on the Account.

6 14.The date of last payment on the subject account was on April 9, 2020.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the  
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$19,719.21, and upon information and belief there  
10 is \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and  
12 credits, the Defendant owes Plaintiff \$19,719.21.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has  
14 been paid, and it is now due and owing.

15 19.Upon information and belief, Citibank, N.A. and successors in interest including  
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy  
19 of Billing Statement provided to the Defendant while the account was active, demonstrating that  
20 the debt was incurred by the Defendant.

21 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy  
22 of the Final Billing Statement and/or Transaction History.

23 23.Upon opening the Account with Citibank, N.A., the Defendant(s) agree to reimburse  
24 Citibank, N.A., and hence Plaintiff as successor in interest for the costs related to the collection of  
25 amounts owing on the Account. Plaintiff has been required to retain Mandarich Law Group, LLP  
26  
27  
28

1 to pursue collection of the amount due hereunder.

2  
3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.

6 25.Within the past 4 years, an account was stated in writing in which it was agreed that  
7 Defendant were indebted in the amount previously referenced herein. Although demand has been  
8 made upon Defendant, said amount of \$19,719.21 has not been paid, and it is now due, owing and  
9 unpaid from Defendant to Plaintiff, as successor in interest.  
10

11  
12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.

15 27.Within the past 4 years, Defendant and each of them became indebted in the amount of  
16 the previously mentioned herein for a balance due on a book account for goods sold and delivered  
17 and/or services rendered by Citibank, N.A.. Although demand has been made upon Defendant,  
18 said amount of \$19,719.21 has not been paid, and it is now due, owing and unpaid including  
19 attorney's fees from Defendant to Plaintiff as successor in interest.  
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1  
2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3  
4 1. For the damages and money in the sum of \$19,719.21,  
5 2. For reasonable attorneys fees pursuant to statute;  
6 3. For costs of suit incurred; and  
7 4. For such other and further relief as the Court deems just and proper.  
8  
9 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.

10  
11 Dated: 12/13/2023

By: **MANDARICH LAW GROUP, LLP**

12  
13  
14 

15 [X] Martin Weingarten, Esq.  
16 *Attorneys for Plaintiff*  
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**EXHIBIT A**

# Citi ThankYou® Preferred Card



**M Z LAMEER**

Member Since 1993 Account number ending in: 6879

Billing Period: **08/14/19-09/12/19**

[www.citicards.com](http://www.citicards.com)

**Customer Service 1-800-THANKYOU(1-800-842-6596)**

TTY-hearing-impaired services only 1-877-693-0218

BOX 6500 SIOUX FALLS, SD 57117

## SEPTEMBER STATEMENT

**Minimum payment due:** **\$471.00**  
**New balance as of 09/12/19:** **\$22,545.21**  
**Payment due date:** **10/09/19**

See the back of this statement for important information about how to avoid paying interest on purchases.

**Late Payment Warning:** If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$35 and your APRs may be increased up to the Penalty APR of 29.99%.

**Minimum Payment Warning:** If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

| If you make no additional charges using this card and each month you pay... | You will pay off the balance shown on this statement in about... | And you will end up paying an estimated total of... |
|-----------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------------------------------------|
| Only the minimum payment                                                    | 4 year(s)                                                        | \$22,545                                            |
| \$626                                                                       | 3 year(s)                                                        | \$22,536<br>(Savings=\$9)                           |

For information about credit counseling services, call 1-877-337-8187.

**You're in a payment program; please pay at least the minimum payment due as listed in the terms and agreement letter sent to you at time of enrollment.**

## Account Summary

|                  |             |
|------------------|-------------|
| Previous balance | \$23,016.21 |
| Payments         | -\$471.00   |
| Credits          | -\$0.00     |
| Purchases        | +\$0.00     |
| Cash advances    | +\$0.00     |
| Fees             | +\$0.00     |
| Interest         | +\$0.00     |

**New balance** **\$22,545.21**

## Credit Limit

Credit limit **\$26,500**  
Includes \$16,600 cash advance limit

Pay your bill from virtually anywhere  
with the Citi Mobile® App and Citi® Online



To download:  
Text 'App15' to MyCiti (692484)  
or go to your device's app store.  
Or visit [www.citicards.com](http://www.citicards.com)

**Minimum payment due** **\$471.00**  
**New balance** **\$22,545.21**  
**Payment due date** **10/09/19**

**Amount enclosed:**

Account number ending in 6879

000000 VI 44 A 0

M Z LAMEER  
5300 LOUISE AVE  
ENCINO CA 91316-2537

CITI CARDS  
PO BOX 78045  
Phoenix, AZ 85062-8045

M Z LAMEER

**Account Summary**

| Trans.<br>date | Post<br>date | Description | Amount |
|----------------|--------------|-------------|--------|
| <hr/>          |              |             |        |

**Payments, Credits and Adjustments**

|       |                   |           |
|-------|-------------------|-----------|
| 09/09 | PAYMENT THANK YOU | -\$471.00 |
|-------|-------------------|-----------|

---

**Fees charged**

|                                           |        |
|-------------------------------------------|--------|
| Total fees charged in this billing period | \$0.00 |
|-------------------------------------------|--------|

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**Interest charged**

|                                               |        |
|-----------------------------------------------|--------|
| Total interest charged in this billing period | \$0.00 |
|-----------------------------------------------|--------|

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**2019 totals year-to-date**

|                                |        |
|--------------------------------|--------|
| Total fees charged in 2019     | \$0.00 |
| Total interest charged in 2019 | \$0.00 |

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**Interest charge calculation**

Days in billing cycle: 30

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

| Balance type   | Annual percentage rate (APR) | Balance subject to interest rate | Interest charge |
|----------------|------------------------------|----------------------------------|-----------------|
| PURCHASES      |                              |                                  |                 |
| Standard Purch | 0.00%                        | \$22,953.41 (D)                  | \$0.00          |
| ADVANCES       |                              |                                  |                 |
| Standard Adv   | 0.00%                        | \$0.00 (D)                       | \$0.00          |

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

**Account messages**

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**EXHIBIT B**

# Citi ThankYou® Preferred Card



**M Z LAMEER**

Member Since 1993 Account number ending in: 6879

Billing Period: **07/14/20-08/13/20**

[www.citicards.com](http://www.citicards.com)

**Customer Service 1-800-THANKYOU(1-800-842-6596)**

TTY-hearing-impaired services only 1-877-693-0218

BOX 6500 SIOUX FALLS, SD 57117

## AUGUST STATEMENT

|                                    |                    |
|------------------------------------|--------------------|
| <b>Minimum payment due:</b>        | <b>\$19,719.21</b> |
| <b>New balance as of 08/13/20:</b> | <b>\$19,719.21</b> |
| <b>Payment due date:</b>           | <b>08/13/20</b>    |

See the back of this statement for important information about how to avoid paying interest on purchases.

**Late Payment Warning:** If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$35 and your APRs may be increased up to the Penalty APR of 29.99%.

**Minimum Payment Warning:** If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

| If you make no additional charges using this card and each month you pay... | You will pay off the balance shown on this statement in about... | And you will end up paying an estimated total of... |
|-----------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------------------------------------|
| Only the minimum payment                                                    | 1 month(s)                                                       | \$19,719                                            |

For information about credit counseling services, call 1-877-337-8188.

**Your account is past due \$2355.00 and overlimit \$0.00.** You're in a payment program; please pay at least the minimum payment due or the amount listed in the terms and agreement letter sent to you at time of enrollment.

## Account Summary

|                    |                    |
|--------------------|--------------------|
| Previous balance   | \$19,719.21        |
| Payments           | -\$0.00            |
| Credits            | -\$0.00            |
| Purchases          | +\$0.00            |
| Cash advances      | +\$0.00            |
| Fees               | +\$0.00            |
| Interest           | +\$0.00            |
| <b>New balance</b> | <b>\$19,719.21</b> |

## Credit Limit

|                                      |          |
|--------------------------------------|----------|
| Credit limit                         | \$26,500 |
| Includes \$16,600 cash advance limit |          |

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:  
Text 'App15' to MyCiti (692484)  
or go to your device's app store.  
Or visit [www.citicards.com](http://www.citicards.com)

|                            |                    |
|----------------------------|--------------------|
| <b>Minimum payment due</b> | <b>\$19,719.21</b> |
| <b>New balance</b>         | <b>\$19,719.21</b> |
| <b>Payment due date</b>    | <b>08/13/20</b>    |

**Amount enclosed:**

Account number ending in 6879

000000 VI 44 A 0

M Z LAMEER  
5300 LOUISE AVE  
ENCINO CA 91316-2537

CITI CARDS  
PO BOX 78045  
Phoenix, AZ 85062-8045

M Z LAMEER

**Account Summary**

| Trans.<br>date | Post<br>date | Description | Amount |
|----------------|--------------|-------------|--------|
|----------------|--------------|-------------|--------|

**Fees charged**

|                                           |        |
|-------------------------------------------|--------|
| Total fees charged in this billing period | \$0.00 |
|-------------------------------------------|--------|

**Interest charged**

|                                               |        |
|-----------------------------------------------|--------|
| Total interest charged in this billing period | \$0.00 |
|-----------------------------------------------|--------|

**2020 totals year-to-date**

|                                |        |
|--------------------------------|--------|
| Total fees charged in 2020     | \$0.00 |
| Total interest charged in 2020 | \$0.00 |

**Interest charge calculation**

Days in billing cycle: 31

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

| Balance type   | Annual percentage rate (APR) | Balance subject to interest rate | Interest charge |
|----------------|------------------------------|----------------------------------|-----------------|
| PURCHASES      |                              |                                  |                 |
| Standard Purch | 0.00%                        | \$19,719.21 (D)                  | \$0.00          |
| ADVANCES       |                              |                                  |                 |
| Standard Adv   | 0.00%                        | \$0.00 (D)                       | \$0.00          |

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

**Account messages**

In response to COVID-19, Citi is providing a temporary redemption option through 11/7/2020. Card Accounts not currently enrolled in a COVID-relief program and which have enough rewards available to cover their minimum payment due can now redeem their rewards to make their minimum payment. To determine if you are eligible, log into your Citi mobile app or your online account and look for the COVID-relief message. If you do not have digital access, or to discuss other redemption methods that may allow you to lower the balance on your account, you can call the servicing number found on the back of your card.

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment will not be reflected until your next statement.

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